

25VECV00435 25VECV00435

County: los-angeles

Division: Civil Law and Motion

Department: 107

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Case Number: 25VECV00435 Hearing Date: September 16, 2026 Dept: 107

SUPERIOR COURT

OF THE STATE OF CALIFORNIA

COUNTY OF LOS

ANGELES

NORTHWEST

DISTRICT

Karla Tostado, et

al.,

Plaintiff.

v.

FCA US,

LLC, et al.

Defendants.

Case Number Department

25VECV00435 107

COURT'S [TENTATIVE]

ORDER RE:

Motion to Compel
Initial Disclosures pursuant to

Code of Civil
Procedure §871.26 and Request for

Monetary Sanctions

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Granted in part and Denied in part

I.

BACKGROUND

Action

for violations of Song Beverly Warranty Act.

Plaintiffs filed a complaint on January 24, 2025 against FCA US, LLC and
Rydel Chrysler Dodge Jeep Ram. The

operative complaint is the First Amended Complaint filed on January 27, 2026
alleging (1) violation of Civil Code section 1793.2(d); (2) violation of Civil
Code section 1793.2(b); (3) violation of Civil Code section 1793.2(a)(3); (4)
breach of the implied warranty of merchantability; and (5) fraudulent
inducement.

On June

15, 2026, Plaintiffs filed the instant Motion to Compel Initial Disclosures
pursuant to Code of Civil Procedure section 871.26 and Request for Monetary
Sanctions. On September Defendant

filed and served an opposition on September 1, 2026. Despite this, on September 8, 2026, Plaintiffs
filed a Notice of Non-Opposition. The court also was under the mistaken belief
that there was no opposition, but upon being informed of the existence of the
opposition the matter was trailed one day from September 15, 2026 to September
16, 2026.

II.

LEGAL

STANDARD

“Within 60 days after the filing of

the answer or other responsive pleading, all parties shall, without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h)." (CCP §871.26(b).)

"The defendant or manufacturer shall provide the following documents to all other parties pursuant to the timelines prescribed in subdivision (b): (1) Copy of or access to a version of the owner's manual for a motor vehicle of the same make, model, and year. (2) Any warranties issued in conjunction with the sale of the motor vehicle. (3) Sample brochures published for the motor vehicle. (4) The motor vehicle's original invoice, if any, to the selling dealer. (5) Sales or lease agreement, if the manufacturer is in possession. (6) Motor vehicle information reports, including build documentation, component information, and delivery details. (7) Entire warranty transaction history for the motor vehicle. (8) Listing of required field actions applicable to the motor vehicle. (9) Published technical service bulletins ("TSBs")¹ for the same make, model, and year reasonably related to the nonconformities pertaining to the motor vehicle. (10) Published information service bulletins ("ISBs") for the same make, model, and year reasonably related to the nonconformities pertaining to the motor vehicle. (11) Records relating to communications between the manufacturer or dealership and the owner or lessee of the motor vehicle, including those related to repair orders or claims involving the motor vehicle. (12) Warranty policies and procedure manuals. (13) Service manuals reasonably related to the nonconformities pertaining to the motor vehicle. (14) If a pre-suit restitution or replacement request is made, all call recordings of pre-suit communications with the consumer available at the time of service of the complaint. (15) If a pre-suit restitution or replacement request is made, the manufacturer's written statement of policies and procedures used to evaluate customer requests for restitution or replacement pursuant to "Lemon Law" claims. (16) If a pre-suit restitution or replacement request is made, any nonprivileged, prelitigation evaluation. (17) Any warranty extensions or modifications issued by the manufacturer on the motor vehicle." (CCP §871.26(h).)

"Unless the party failing to comply with this section shows good cause, notwithstanding any other law and in addition to any other sanctions imposed pursuant to this chapter, a court shall impose sanctions as follows: (1) A one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff's attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the

defense attorney respectively, paid within 15 business days for failure to comply with the document production requirements as prescribed in subdivision (b)." (CCP §871.26(j).)

III.

DISCUSSION

Plaintiffs

ask that the Court order Defendant FCA US LLC to comply with its mandatory initial disclosure obligations under CCP §871.26. Plaintiffs ask that Defendant produce all documents required under CCP §871.26(h)(6)-(10), (12) and (13) with verifications. Plaintiffs also request sanctions in the amount of \$2,500 against Defendant FCA US LLC and its counsel.

Defendant

filed a demurrer to the original complaint on April 14, 2025, a demurrer to the FAC on February 26, 2026 and an answer on April 22, 2026. Although Defendant has produced some documents, Plaintiff claims Defendant has not yet served initial disclosures with verifications required by section 871.26(h)(6)-(10), (12) and (13). (Rucker Dec., ¶4.)

Although

Plaintiff filed a notice of non-opposition on September 8, 2026, Defendant filed and served an opposition on September 1, 2026. Defendant's opposition objects to Plaintiff's attempt to obtain verified responses pursuant to CCP §871.26 and additional remedies wholly outside the scope of the statute. Defendant argues sanctions and relief under section 871.26 are unwarranted because it is undisputed that Defendant produced documents pursuant to section 871.26.

Defendant argues section 871.26 does not require verified responses, nor are sanctions warranted merely because Plaintiff believes there are more responsive documents that were not produced in the initial disclosure.

Plaintiff

fails to cite any authority authorizing the Court to compel initial disclosures under section 871.26 or any relief other than sanctions. Plaintiff also fails to cite any applicable authority requiring verification of the initial disclosure under section 871.26. Plaintiff cites to CCP §2016.090, which applies to initial disclosures in civil discovery as detailed in that section. Section 2016.090 does not apply to the initial disclosures under section 871.26 on its face, nor does Plaintiff cite to any case law applying section 2016.090 to disclosures under section

871.26. Plaintiff's motion to compel verified initial disclosures is therefore denied.

However,

Plaintiff also requests sanctions in the amount of \$2,500. Section 871.26 subdivision (j) specifically authorizes mandatory sanctions for failure to provide the required disclosures, unless the non-complying party shows good cause. Pursuant to subdivision (j)(1), a defense attorney who fails to comply with section 871.26 must be sanctioned in the amount of \$2,500. Plaintiff establishes non-compliance and is entitled to an order imposing sanctions against defense counsel.

Section

871.26(h) provides, "[t]he defendant or manufacturer shall provide the following documents to all other parties pursuant to the timelines prescribed in subdivision (b)...." Defendant was therefore required to provide all the documents in subdivisions (6)-(17) with its initial disclosure under section 871.26. Plaintiff claims Defendant did not produce responsive documents to categories (h)(6)-(10), (12) and (13). Plaintiff details in its briefing the categories of documents required under subdivision (h) that were not included in the initial disclosure. (Rucker, Dec., ¶4; Motion, pp. 8-14.)

In

order to avoid sanctions, Defendant was required to establish either that it produced documents in response to subsections (h)(6)-(10), (12) or (13) or good cause failing doing so. (CCP §871.26(j).) Defendant argues any disclosure at all is sufficient to avoid sanctions. Defendant is incorrect. Sanctions must be awarded if the Defendant did not comply with the disclosure requirements under subdivision (h). Plaintiff has established that Defendant did not comply.

Upon

this showing, the burden shifted to Defendant to present some evidence that it complied or that good cause existed for its noncompliance. Defendant fails to submit evidence of either. Defendant only argues that Plaintiff's requested relief exceeded the scope of section 871.26 and its partial, unverified disclosures were sufficient to avoid sanctions. Defendant argues it acted in good faith and engaged in meet and confer efforts with Plaintiff. Defendant fails to cite any authority holding

that these facts constitute good cause for failure to provide full disclosures pursuant to subdivision (h), nor does Defendant provide a declaration attesting to the meet and confer efforts, the completeness of its initial disclosure and the reasons for any failure to include documents responsive to subdivision (h)(6)-(10), (12) and (13). Based on the language of the statute, Defendant was required to produce all documents required under subdivision (h) and its failure to do so requires imposition of sanctions absent a showing of good cause.

Plaintiff's

Motion to Compel Initial Disclosures pursuant to Code of Civil Procedure section 871.26 and Request for Monetary Sanctions is granted as to the request for sanctions and denied as to all other requested orders, including an order compelling initial disclosure.

IV.

CONCLUSION

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Plaintiff's

Motion to Compel Initial Disclosures pursuant to Code of Civil Procedure section 871.26 and Request for Monetary Sanctions is granted as to the request for sanctions and denied as to all other requested orders, including an order compelling initial disclosure.

Dated: September 16, 2026 _____ Hon. Eric
Harmon

Judge
of the Superior Court

SUPERIOR COURT
OF THE STATE OF CALIFORNIA

COUNTY OF LOS
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COURT'S [TENTATIVE]
ORDER RE:

Motion for Sanctions

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Granted

I.
BACKGROUND

Plaintiffs
filed a complaint on January 24, 2025 against FCA US, LLC and Rydell Chrysler
Dodge Jeep Ram. The operative complaint
is the First Amended Complaint filed on January 27, 2026 alleging: (1)
violation of Civil Code section 1793.2(d); (2) violation of Civil Code section
1793.2(b); (3) violation of Civil Code section 1793.2(a)(3); (4) breach of the
implied warranty of merchantability; and (5) fraudulent inducement.

On
June 12, 2026, Defendants filed this Motion for Sanctions.

II.

LEGAL

STANDARD¿

“Within 60 days after the filing of the answer or other responsive pleading, all parties shall, without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h).” (CCP §871.26(b).)

“Unless

the party failing to comply with this section shows good cause, notwithstanding any other law and in addition to any other sanctions imposed pursuant to this chapter, a court shall impose sanctions as follows: (1) A one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff's attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the document production requirements as prescribed in subdivision (b).” (CCP §871.26(j).)

III.

DISCUSSION

Defendants contend that under Code of Civil Procedure section 871.26, subdivision (b), Plaintiff's mandatory disclosures were due on or before June 13, 2025, as Defendants filed their responsive pleading on April 14, 2025. On July 28, 2025, Plaintiff served its initial disclosures and produced one single document. (Cho Decl., ¶ 4; Exh A.) Plaintiff failed to fully comply with the mandatory disclosures. (Id., ¶ 5.)

As Plaintiff has failed to comply with the mandatory disclosure obligations, Defendants seek sanctions in the amount of \$1,500. Plaintiff has failed to file an opposition to show good cause. Thus, Defendants' request for sanctions against Plaintiff's counsel is granted.

IV.

CONCLUSION

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Defendants'

Motion for Sanctions is granted. Plaintiff's counsel is ordered to pay
Defendant \$1,500.

Dated: September 16, 2026 _____ Hon. Eric
Harmon

Judge
of the Superior Court